CFI 041/2024 Anastasiia Denisova v (1) Aleksei Galtcev (2) Realiste Holding Ltd

FEBRUARY 24, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No. CFI 041/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

ANASTASIIA DENISOVA

Claimant

and

(1) ALEKSEI GALTCEV

(2) REALISTE HOLDING LTD

Defendants

ORDER WITH REASONS OF H.E. CHIEF JUSTICE WAYNE MARTIN

UPON the Order with Reasons of H.E. Justice Sapna Jhangiani dated 15 May 2025 (the "Order of 15 May 2025")

AND UPON the Order with Reasons dated 26 May 2025 of H.E. Justice Sapna Jhangiani immediately assessing the Claimant's costs in relation to the preliminary issue on a standard basis (the "Costs Order")

AND UPON the Defendants' renewed Appeal Notice dated 4 September 2025 seeking permission to appeal the Order and the Costs Order (the "Renewed Application for Permission to Appeal")

AND UPON the Order with Reasons of H.E. Chief Justice Wayne Martin dated 8 October 2025 (the "Order")

AND UPON the Claimant's Statement of Costs dated 5 December 2025

AND UPON the Defendant's submission in reply dated 29 January 2026

AND UPON the Claimant's reply submission dated 3 February 2026

IT IS HEREBY ORDERED THAT the Claimant's costs of the Renewed Application for Permission to Appeal are assessed in the amount of USD 14,000.

Issued by:

Delvin Sumo

Assistant Registrar

Date of Issue: 24 February 2026

At: 12pm

SCHEDULE OF REASONS

1. In accordance with the orders made on 8 October 2025, the parties have exchanged submissions in relation to the quantum of the costs to be paid to the Claimant by the Defendants pursuant to those orders.

2. The claimant claims an amount of USD 20, 226. The statement of costs provided by the Claimant provides a statement of the hourly rates at which the time spent by the fee owners who have worked on the matter is claimed. Those rates correspond to the rates specified in Registrars Practice Direction No. 1 of 2023.

3. The statement of costs also sets out the hours claimed in respect of the relevant fee earners being a total of 22 hours made-up as to 16 hours of time spent by a partner of the firm with 20 years of experience, and six hours spent by a lawyer with three plus years of experience.

4. The Defendants object to the amount claimed on 4 grounds.

5. First, they contend that the amount is excessive because they assert that the experienced partner spent a disproportionate amount of time on the case as compared to the more junior lawyer whose rate is significantly lower. This ground of objection is rejected. A determination as to the appropriate level of experience required to perform particular legal tasks is pre-eminently a matter for the lawyers involved. Experience in the assessment of costs shows that inappropriate delegation of tasks to more junior lawyers can increase costs because the costs of a senior lawyer reviewing and editing the work of the junior lawyer, when added to the cost of the work of the junior lawyer can be greater than the cost of the senior lawyer doing the work in the first instance. The assessment of costs in this Court suggests that involving an excessive number of lawyers in the performance of legal work is a significant cause of excessive claims for cost.

6. Second, the Defendants object to a claim for one hour spent travelling/waiting. They observe, correctly, that as there was no hearing of the Renewed Application for Permission to Appeal, it is difficult to see how time could have been spent travelling or waiting. In reply submissions, the claimant

has stated that the time was spent travelling in order to attend upon the client. There is no reason to doubt that assertion and this ground of objection is rejected.

7. Third, the Defendants contend that the costs are excessive because there should have been greater delegation of tasks to the more junior lawyer. This is a repetition of the first ground of objection and is rejected for the reasons given above.

8. Fourth, the Defendants contend that the hours claimed are excessive. They contend that the professional work required to respond to the Renewed Application for Permission to Appeal could and should have been performed in six hours and with an appropriate mix of time between the senior and the junior lawyer, the costs should be USD 4, 836.

9. There is some force in this ground of objection. The essential work required to be performed in order to respond to the Renewed Application for Permission to Appeal was the preparation of a skeleton argument. The skeleton argument that was prepared and filed comprised only three pages of text. It was comprised of a series of dot points often expressed in conclusory terms. It contained little by way of developed argument. It replicated allegations of improper forensic conduct on the part of the Defendants which were made in the skeleton argument served by the Claimant in opposition to the initial application for permission to appeal end which were of no assistance in the assessment of whether or not the proposed grounds of appeal had a real prospect of success. The skeleton argument as a whole was of very limited assistance in the consideration of the Renewed Application for Permission to Appeal.

10. Having regard to the content of the skeleton argument for which the costs are predominantly claimed, the amount claimed is excessive.

11. I assess the Claimant's costs of the Renewed Application for Permission to Appeal in the amount of USD 14,000.